

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anna Steel	Team: Team # 8	CCRB Case #: 200812182	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/13/2008 10:23 PM	Location of Incident: § 87(2)(b) [REDACTED]	Precinct: 75	18 Mo. SOL 2/13/2010	EO SOL 2/13/2010	
Date/Time CV Reported Thu, 08/21/2008 9:38 AM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Thu, 08/21/2008 9:38 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Caputo	27878	935156	075 PCT
2. POM Thomas Fusco	09284	940918	075 PCT
3. Officers			075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Gmelch	03171	915806	075 PCT
2. SGT Domenico Colavito	00355	883666	075 PCT
3. POF Jennifer Lavelle	20760	933921	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jason Caputo	Abuse: PO Jason Caputo questioned § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Jason Caputo	Abuse: PO Jason Caputo frisked § 87(2)(b) [REDACTED]	[REDACTED]
C.POM Jason Caputo	Abuse: PO Jason Caputo searched § 87(2)(b) [REDACTED]	[REDACTED]
D.POM Jason Caputo	Abuse: PO Jason Caputo refused to provide his name to § 87(2)(b) [REDACTED]	[REDACTED]
E.POM Jason Caputo	Abuse: PO Jason Caputo searched the car in which § 87(2)(b) [REDACTED] was an occupant.	[REDACTED]
F.POM Thomas Fusco	Abuse: PO Thomas Fusco searched the car in which § 87(2)(b) [REDACTED] was an occupant.	[REDACTED]
G. Officers	Abuse: Officers refused to provide their names and shield numbers to § 87(2)(b) [REDACTED]	[REDACTED]
H. Officers	Discourtesy: Officers spoke obscenely to § 87(2)(b) [REDACTED]	[REDACTED]
I. Officers	Abuse: Officers threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]

Synopsis

On August 13, 2008, at approximately 10:30 AM, § 87(2)(b) was sitting in his fiancé, § 87(2)(b) vehicle, which was legally parked on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. An officer, § 87(2)(g) PO Jason Caputo from the 75th Precinct, approached § 87(2)(b) on the driver's side window of § 87(2)(b) vehicle and asked him what he was doing (**Allegation A**). PO Caputo then asked § 87(2)(b) to step out of the vehicle, escorted him to the rear of the vehicle and frisked (**Allegation B**) and searched him (**Allegation C**). § 87(2)(b) stated that he repeatedly requested PO Caputo's name during this process, which PO Caputo allegedly refused to provide him (**Allegation D**). Additional officers, identified through the investigation as PO Thomas Fusco, Sgt. Domenico Colavito and PO Jennifer Lavelle from the 75th Precinct, were present at the scene. PO Caputo and PO Fusco searched § 87(2)(b)'s vehicle (**Allegations E and F**). § 87(2)(b) stated that he repeatedly asked the officers to 'identify themselves,' which they allegedly refused to do (**Allegation G**). § 87(2)(b) alleged that these officers repeatedly told him to 'shut the fuck up' (**Allegation H**) and threatened him with arrest (**Allegation I**). At the conclusion of the incident, § 87(2)(b) was called to the scene to retrieve her vehicle. § 87(2)(b) was then transported to the 75th Precinct stationhouse. As a result of his arrest, § 87(2)(b) was charged with § 87(2)(b)

§ 87(2)(g)

This case was originally assigned to Investigator Watson. Following her resignation from the agency, the case was reassigned to Investigator Steel on April 22, 2009.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is § 87(2)(b) old. He is a Hispanic male who is 6'1" tall, weighs 190 pounds and has black hair and brown eyes. § 87(2)(b) sent a written to complaint to the CCRB on August 18, 2008 (encl. 3a – 3b). This complaint was received by the CCRB on August 21, 2008 (encl. 4a – 4b). § 87(2)(b) was interviewed at the CCRB on September 4, 2008 (encl. 5a – 5d). § 87(2)(g)

On August 13, 2008, at approximately 10:30 PM, § 87(2)(b) left his residence, § 87(2)(b) in Brooklyn, and walked to the intersection of § 87(2)(b) and § 87(2)(b) § 87(2)(b)'s fiancée, § 87(2)(b), had legally parked her Lexus RS300 sports utility vehicle at this intersection. § 87(2)(b) sat in the driver's seat of § 87(2)(b) vehicle to make a telephone call on his cellular phone. The vehicle's engine was not running and the keys were not in the ignition. An unmarked police vehicle parked behind him and an officer, identified through the investigation as PO Jason Caputo from the 75th Precinct, walked to the driver's side of § 87(2)(b) vehicle. § 87(2)(b) described PO Caputo as a white male who was about 5'5" tall, muscular, had short hair, a tattoo of a foreign flag on his bicep and was in plainclothes. In his written complaint to the CCRB (encl. 3a – 3b), § 87(2)(b) stated that four officers approached his driver's side window.

PO Caputo asked § 87(2)(b) what he was doing (**Allegation A**). § 87(2)(b) did not specify whether he replied. PO Caputo then asked him to step out of his vehicle. § 87(2)(b) told PO Caputo

to ‘identify himself.’ PO Caputo responded that he was an officer and again asked him to step out of the vehicle. In his written complaint to the CCRB (encl. 3a – 3b), § 87(2)(b) § 87(2)(g) stated that multiple officers told him to, “Shut the fuck up and put your hands on the car!” § 87(2)(b) did not mention this in his interview with the CCRB (encl. 5a – 5d). § 87(2)(b) stepped out of § 87(2)(b) vehicle and then walked to the rear of the vehicle at PO Caputo’s instruction. PO Caputo frisked § 87(2)(b) at the rear of the vehicle by patting him down along the outside of his clothing (**Allegation B**) and then felt inside the pockets of his jeans and removed their contents (**Allegation C**), which included a wallet and his cellular telephone. § 87(2)(b) did not specify whether he had any additional items in his pockets. § 87(2)(b) asserted that he repeatedly asked for PO Caputo’s name during this process, which PO Caputo never provided (**Allegation D**). § 87(2)(b) did not specify whether PO Caputo verbally or nonverbally refused to provide his name.

§ 87(2)(b) vehicle was then searched by three officers, though the investigation determined that the vehicle was searched by only PO Caputo and a second officer, identified through the investigation as PO Thomas Fusco from the 75th Precinct (**Allegations E and F**). Two additional officers were present at the scene and were identified through the investigation as Sgt. Domenico Colavito and PO Jennifer Lavelle from the 75th Precinct. § 87(2)(b) described Sgt. Colavito as a white male who was about 6’ tall, had wavy graying hair, brown eyes and was in plainclothes; PO Lavelle as a white female who was about 6’ tall, slim and had brown hair secured in a ponytail; and PO Fusco as a white male who was short, stocky, and baldheaded and had tattoos on an unspecified part of his body. § 87(2)(b) did not specify when he became aware that PO Fusco, Sgt. Colavito and PO Lavelle were at the scene, did not specify whether these officers arrived in the same vehicle as PO Caputo and did not specify at what point they became involved in the incident or whether they were present when he was first approached.

Throughout the incident, § 87(2)(b) asked all four officers to ‘identify themselves,’ which they allegedly refused to do (**Allegation G**). § 87(2)(b) did not specify whether they simply ignored his request or verbally refused to provide their identifying information in some way. § 87(2)(b) asked all four officers why they were interested in him. § 87(2)(b) alleged that all four officers repeatedly told him to ‘shut the fuck up’ (**Allegation H**) and repeatedly threatened him with arrest (**Allegation I**). § 87(2)(b) did not contextualize these remarks or threats and did not specify whether the officers made these statements in unison or independently of one another. § 87(2)(b) told PO Caputo that the officers were violating his Fourth Amendment Rights. In reply, PO Caputo asked § 87(2)(b) whether he also knew the Emancipation Proclamation. At the conclusion of the vehicle search, the officers asked § 87(2)(b) who owned § 87(2)(b) vehicle. § 87(2)(b) told the officers that the vehicle belonged to his fiancée, § 87(2)(b). PO Caputo then called § 87(2)(b) though § 87(2)(b) did not specify how, and asked her to respond to the location to verify the ownership of the vehicle. § 87(2)(b) did not specify whether § 87(2)(b) ever responded to the scene.

§ 87(2)(b) was arrested and transported to the 75th Precinct stationhouse. § 87(2)(b) noted in his written complaint to the CCRB (encl. 3a – 3b) that he was arrested ‘under the pretext of unlicensed driving’ because he was neither driving, nor was § 87(2)(b) vehicle running. § 87(2)(b) also alleged in his written complaint (encl. 3a – 3b) that every officer he saw while being processed at the 75th Precinct stationhouse refused to identify themselves upon his request. § 87(2)(b) did not mention this allegation in his interview with the CCRB (encl. 5a – 5d). § 87(2)(b) was ultimately transported to Brooklyn Central Booking. As a result of his arrest, he was charged with § 87(2)(b)

Results of Investigation

Police Officer Statements:

PO Jason Caputo

PO Jason Caputo is § 87(2)(b) years old. He is a white male who is 5’7” tall, weighs 174 pounds and has brown hair and brown eyes. PO Caputo is assigned to the 75th Precinct and has been a member of the service for four years. On the day of the incident, PO Caputo was assigned to a sneu observation post with

PO Thomas Fusco and worked from 3:00 PM to 11:35 PM in plainclothes and in an unmarked vehicle. PO Caputo's memobook (encl. 6a – 6c) notes that at 10:40 PM, he conducted a car stop of a 2002 Lexus, occupied by a § 87(2)(b). At 10:50 PM, PO Caputo noted that § 87(2)(b) was found to have four prior suspensions and he reported that an arrest had been effected at the location. At 11:00 PM, PO Caputo arrived at the 75th Precinct with the arrestee.

Police Reports

PO Caputo prepared the arrest report (encl. 7a – 7b) corresponding to § 87(2)(b). He reported that on August 13, 2008, at approximately 10:50 PM, he observed § 87(2)(b) operating a vehicle. PO Caputo noted that official department records show that § 87(2)(b)'s license to operate a vehicle had been suspended and that he had two suspensions on two dates, for a total of four prior suspensions. PO Caputo noted that § 87(2)(b) called a female named § 87(2)(b) at 10:50 PM.

CCRB Statement

PO Caputo was interviewed at the CCRB on May 5, 2009 (encl. 8a – 8c), at which time he provided the following statement: on August 13, 2008, at approximately 10:00 PM, PO Jason Caputo was conducting routine patrol with his partner, PO Thomas Fusco. PO Caputo observed a male, subsequently identified through his arrest as § 87(2)(b) sitting alone in the driver's seat of a legally parked Lexus on the side of § 87(2)(b) opposite § 87(2)(b) in Brooklyn. The engine of this vehicle was running, § 87(2)(b)'s head was bent forward and his driver's side window was rolled down. PO Caputo and PO Fusco decided to approach § 87(2)(b) to verify his identity and determine why he was parked in a running vehicle. PO Caputo explained that his attention was alerted to § 87(2)(b)'s vehicle because its engine was running and it was the one of the only vehicles parked on that side of the street, which bordered a waste processing plant. One vehicle was parked about twelve spaces in front of § 87(2)(b) and one vehicle was parked about ten spaces behind him. There were no pedestrians in the area. PO Caputo was also unable to see whether § 87(2)(b) was doing anything in the vehicle, aside from observing that his head was bent forward. PO Caputo explained that the location in which § 87(2)(b) was parked was a drug prone area, which also had a high rate of auto larceny complaints.

PO Caputo approached § 87(2)(b) on the driver's side of the vehicle and PO Fusco approached the passenger's side. PO Caputo asked § 87(2)(b) whether there was a problem and whether everything was okay. PO Caputo recalled that § 87(2)(b) gave him 'attitude,' but he was unable to recall what § 87(2)(b) said specifically. PO Caputo asked § 87(2)(b) for his license and registration. § 87(2)(b) explained that he did not have the paperwork for the vehicle because it belonged to his wife, identified through the investigation as § 87(2)(b). § 87(2)(b) told PO Caputo that he was sitting in the vehicle because he had gotten into an argument with § 87(2)(b). When § 87(2)(b) could not produce his license and registration, PO Caputo asked him to step out of the vehicle. PO Caputo explained that it was his intention to verify the ownership of the Lexus since § 87(2)(b) had admitted that it was not his. Due to the number of auto larceny complaints in the area, PO Caputo also wanted to verify that the vehicle was not stolen. § 87(2)(b) voluntarily exited the Lexus and PO Caputo escorted him to the rear of the vehicle.

PO Caputo obtained § 87(2)(b)'s name and conducted a warrant check. PO Caputo did not recall whether he obtained § 87(2)(b)'s name verbally or through some other form of identification. PO Caputo conducted the warrant check over the radio. While the warrant check was being conducted, § 87(2)(b) began to loudly protest the validity of the encounter. PO Caputo asked § 87(2)(b) to keep his hands on the vehicle. § 87(2)(b) initially complied and then began to step away from the vehicle. PO Caputo instructed him to return to the vehicle at least twice. § 87(2)(b) began cursing, though PO Caputo did not recall what he said specifically, and also recited the entire Fourth Amendment. PO Caputo did not ask § 87(2)(b) at the conclusion of this recitation whether he also knew the Emancipation Proclamation. The warrant check revealed that § 87(2)(b) had four suspensions of his license on two different dates. PO Caputo then placed § 87(2)(b) under arrest. § 87(2)(b) resisted slightly while being handcuffed by refusing to give up one of his hands. PO Caputo frisked and

searched § 87(2)(b) incident to his arrest. § 87(2)(b) was not frisked or searched prior to his arrest. This frisk and search did not yield any contraband.

Sgt. Domenico Colavito responded to the scene to verify the arrest. PO Caputo did not recall at what point during the incident Sgt. Colavito responded to the scene, though he confirmed that neither Sgt. Colavito nor his operator were involved in the initial approach of § 87(2)(b). § 87(2)(b) never requested any of the officers' names or shield numbers during the incident. PO Caputo never refused to provide his name or shield number to § 87(2)(b). None of the officers ever told § 87(2)(b) to 'shut the fuck up' or threatened him with arrest. PO Caputo conducted an inventory search at the scene of § 87(2)(b)'s arrest. PO Caputo explained that he intended to voucher and impound the Lexus. At the conclusion of this search, § 87(2)(b) asked whether he could call § 87(2)(b) so that she could retrieve the vehicle. PO Caputo allowed him to do so and § 87(2)(b) arrived at the scene within a few minutes of the call. § 87(2)(b) verified that she was the owner of the vehicle by producing her registration and license. PO Caputo gave § 87(2)(b) the keys to the vehicle and § 87(2)(b)'s property. § 87(2)(b) was then transported to the 75th Precinct stationhouse.

PO Thomas Fusco

PO Thomas Fusco is § 87(2)(b) years old. He is a white male who is 5'9" tall, weighs 230 pounds and has black hair and brown eyes. PO Fusco is assigned to the 75th Precinct and has been a member of the service for three years. On the day of the incident, PO Fusco was assigned to a sneu unit and worked from 3:00 PM to 11:35 PM in plainclothes and in an unmarked police vehicle. PO Fusco did not have any entries in his memobook (encl. 9a – 9b) regarding the incident.

CCRB Statement

PO Fusco was interviewed at the CCRB on May 5, 2009 (encl. 10a – 10b), at which time he provided the following statement: on August 13, 2008, at approximately 10:20 PM, PO Thomas Fusco was conducting routine patrol with his partner, PO Jason Caputo. PO Fusco and PO Caputo observed a Lexus parked on § 87(2)(b) near § 87(2)(b) in Brooklyn. The vehicle was running and a male, subsequently identified through his arrest as § 87(2)(b) was sitting in the driver's side of the vehicle. Other vehicles were parked in § 87(2)(b)'s vicinity, but no pedestrians were in the area. PO Fusco and PO Caputo decided to approach § 87(2)(b) to verify his identity and investigate why he was in the area. PO Fusco explained that § 87(2)(b) was parked in a drug prone area from which numerous auto larceny complaints had been reported.

PO Fusco approached the passenger's side of § 87(2)(b)'s vehicle while PO Caputo approached the driver's side of the vehicle. PO Fusco did not speak with § 87(2)(b) and did not recall what was said between § 87(2)(b) and PO Caputo. At some point, PO Fusco overheard PO Caputo ask § 87(2)(b) for his identification. PO Fusco believed that § 87(2)(b) refused to provide his ID, because he was then asked to step out of the vehicle. Either PO Fusco or PO Caputo then conducted a warrant check on § 87(2)(b). PO Fusco did not recall the manner in which this warrant check was conducted, did not recall who obtained § 87(2)(b)'s name, and did not recall whether his name was obtained verbally or through an ID of some sort. The warrant check revealed that § 87(2)(b) had prior suspensions. He was then placed under arrest and either PO Fusco or PO Caputo frisked him incident to his lawful arrest. PO Fusco described this as a patting down over § 87(2)(b)'s clothing. PO Fusco did not recall whether § 87(2)(b) was also searched.

§ 87(2)(b) appeared angry during the incident, but PO Fusco did not recall what statements he made. PO Fusco did not recall § 87(2)(b) requesting the officers' names or shield numbers and did not recall him generally stating, "Identify yourself." None of the officers told § 87(2)(b) to 'shut the fuck up' and never threatened him with arrest. PO Fusco and PO Caputo conducted an inventory search of § 87(2)(b)'s vehicle at the scene of his arrest. PO Fusco believed that he and PO Caputo were going to impound § 87(2)(b)'s vehicle. At some point, § 87(2)(b) was allowed to make a telephone call and a relative, identified through the investigation as § 87(2)(b), responded to the scene to take possession of the vehicle. Sgt. Thomas Colavito also responded to the scene to verify § 87(2)(b)'s arrest.

§ 87(2)(b)'s arrest, though PO Fusco did not recall at what point during the incident. PO Fusco did not hear § 87(2)(b) ask Sgt. Colavito and his operator for their names and shield numbers and never heard them direct profanity towards § 87(2)(b) or threatened him with arrest.

Sgt. Domenico Colavito

Sgt. Domenico Colavito is § 87(2)(b) years old. He is a white male who is 6' tall, weighs 210 pounds and has graying hair, a moustache and brown eyes. Sgt. Colavito is assigned to the 75th Precinct and has been a member of the service for twenty-four years. On the day of the incident, Sgt. Colavito was the assigned street enforcements narcotics unit supervisor and worked from 2:50 PM to 11:47 PM with PO Jennifer Lavelle in plainclothes and in an unmarked vehicle. Sgt. Colavito's memobook (encl. 11a – 11b) notes that he responded to § 87(2)(b) and § 87(2)(b) at 10:45 PM in response to a call for assistance.

CCRB Statement

Sgt. Colavito was interviewed at the CCRB on May 21, 2009 (encl. 12a – 12b), at which time he provided the following statement: on August 13, 2008, at approximately 10:45 PM, Sgt. Colavito was received a call requesting his assistance at § 87(2)(b) and § 87(2)(b) in Brooklyn. Sgt. Colavito responded to the location with his partner, PO Jennifer Lavelle. He observed a male, subsequently identified through his arrest as § 87(2)(b) standing in handcuffs by PO Jason Caputo and PO Thomas Fusco. § 87(2)(b) was standing at the rear of a sports utility vehicle. Sgt. Colavito spoke with PO Caputo and PO Fusco, who informed him that § 87(2)(b) had been stopped in a vehicle and discovered to have a suspended license. Sgt. Colavito did not recall whether the vehicle in which § 87(2)(b) had been sitting was running when he arrived at the scene. Sgt. Colavito did not know, based on what PO Caputo and PO Fusco told of him of the incident, whether the vehicle's engine was running when § 87(2)(b) was approached. Sgt. Colavito stated that § 87(2)(b)'s vehicle was not searched while he was at the scene. He did not know whether it was searched prior to his arrival.

§ 87(2)(b) was very irate and recited both the Second and Fourth Amendments during the incident. Sgt. Colavito did not know whether any officers asked § 87(2)(b) whether he also knew the Emancipation Proclamation. Sgt. Colavito confirmed that § 87(2)(b) was likely frisked and searched incident to this arrest, though Sgt. Colavito did not witness this. Sgt. Colavito did not speak with § 87(2)(b) during the incident. Sgt. Colavito did not recall whether § 87(2)(b) asked the officers for their names or shield numbers. Sgt. Colavito stated that he never refused to provide his name or shield number during the incident, never told § 87(2)(b) to 'shut the fuck up' and never directed profanity towards him. Sgt. Colavito never heard any other officers threaten § 87(2)(b) with arrest or tell him to 'shut the fuck up.' A prisoner van responded to the location and § 87(2)(b) was transported to the 75th Precinct. Either § 87(2)(b)'s wife or girlfriend, identified through the investigation as § 87(2)(b), exited a nearby building prior to his departure and took possession of his vehicle.

Sgt. Michael Gmelch

Sgt. Michael Gmelch is § 87(2)(b) years old. He is a white male who is 6'2" tall, weighs 275 pounds and has brown hair and green eyes. Sgt. Gmelch is assigned to the 75th Precinct and has been a member of the service for fourteen years. On the day of the incident, Sgt. Gmelch was one of two assigned sneu supervisors and worked from 2:50 PM to 11:47 PM in uniform and in a marked police van. Sgt. Gmelch did not have any entries in his memobook (encl. 13a – 13b) regarding the incident.

CCRB Statement

Sgt. Gmelch was interviewed at the CCRB on May 5, 2009 (encl. 14a – 14b), at which time he provided the following statement: Sgt. Michael Gmelch did not respond to § 87(2)(b) and § 87(2)(b) in Brooklyn on August 13, 2008, at approximately 10:20 PM. Sgt. Gmelch stated that he returned to the 75th Precinct stationhouse on the day of the incident at 10:00 PM. The investigator presented Sgt. Gmelch

with a warrant check bearing his name. Sgt. Gmelch explained that the warrant check was from the ‘finest’ system, meaning that the check was conducted at the stationhouse. Sgt. Gmelch did not recall conducting this warrant check. Sgt. Gmelch was presented with a photograph of § 87(2)(b) which he did not find familiar in any way. Sgt. Gmelch did not recall § 87(2)(b) being brought into the stationhouse, nor was he familiar with the circumstances underlying § 87(2)(b)’s arrest.

Officers Not Interviewed by the Investigation

Statements and documentary evidence identified PO Jennifer Lavelle as present at the scene of the incident.

§ 87(2)(g)

Map of Incident Location

A map of the incident location (encl. 15) shows that § 87(2)(b), § 87(2)(b)’s residence, is located at the end of a cul-de-sac located approximately half a block from § 87(2)(b) on § 87(2)(b).

Police Department Documents:

75th Precinct Roll Call

The roll call for August 13, 2008 (encl. 16a – 16c), shows that Sgt. Colavito and Sgt. Gmelch were the assigned street narcotics enforcement unit supervisors and PO Fusco and PO Caputo were assigned to a street narcotics enforcement unit detail.

75th Precinct Command Log

The command log for August 13, 2008 (encl. 17) shows that § 87(2)(b) was lodged in the 75th Precinct stationhouse at 12:00 AM on August 14, 2008. His physical and mental condition was noted as apparently normal. He was transported to Brooklyn Central Booking at 5:00 PM.

75th Precinct Prisoner Holding Pen Roster

According to the prisoner holding pen roster (encl. 18), § 87(2)(b) was lodged in the 75th Precinct holding cells at 12:00 AM on August 14, 2008.

Warrant Check

According to an MISD generated search, Sgt. Michael Gmelch conducted a warrant check on § 87(2)(b) on August 13, 2008 (encl. 19).

Disposition of Relevant Arrest

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian Criminal Conviction History

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Notice of Claim Inquiry

As of May 27, 2009, the Comptroller's Bureau of Law and Adjustment determined that § 87(2)(b) has not filed a notice of claim with regard to the incident (encl. 22).

Officer CCRB History

PO Caputo and PO Fusco have been members of the service for four years and have had no CCRB allegations substantiated against them (encl. 2a – 2c).

Conclusions and Recommendations

Officer Identification

Statements and documentary evidence identified PO Jason Caputo, PO Thomas Fusco, Sgt. Domenico Colavito and PO Jennifer Lavelle as present at the scene of the incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that an officer frisked and searched him and refused to provide his name upon request. He described this officer as a white male who was about 5'5" tall, muscular, had short hair and a tattoo of a flag on his bicep and was in plainclothes. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) also alleged that officers refused to 'identify themselves' upon request, directed profanity towards him and threatened him with arrest. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Undisputed Facts

It is undisputed that § 87(2)(b) was approached while seated in a Lexus RS300 sports utility vehicle. It is undisputed that PO Caputo questioned § 87(2)(b). It is undisputed that PO Caputo and PO Fusco searched § 87(2)(b)'s vehicle.

Disputed Facts

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Assessment of Evidence

§ 87(2)(b) stated that he was sitting in § 87(2)(b) legally parked vehicle, whose engine was not running, at the time in which he was approached by PO Caputo. According to PO Caputo and PO Fusco, § 87(2)(b) engine was running. § 87(2)(b) stated in his written complaint to the CCRB that he was arrested 'under false pretenses' for unlicensed driving. The officers affirmed that, following a warrant check, they discovered that § 87(2)(b)'s license was suspended and § 87(2)(b) was ultimately arrested for § 87(2)(b) (encl. 7a – 7b). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) asserted that he was frisked and searched immediately after he was escorted to the rear of § 87(2)(b) vehicle, prior to his arrest. According to PO Caputo, he frisked and searched § 87(2)(b) incident to his lawful arrest after discovering that his license was suspended. PO Fusco corroborated PO Caputo's testimony. Both § 87(2)(b) and PO Caputo were consistent in stating that PO Caputo asked him what he was doing and asked him to step out of the vehicle. PO Caputo clearly articulated § 87(2)(b)'s responses to each of his questions, whereas § 87(2)(b) could not specify what he said in reply to PO Caputo. According to PO Caputo, he asked § 87(2)(b) to step out of the vehicle when § 87(2)(b) informed him that he did not have any paperwork for the vehicle because it belonged to his wife, § 87(2)(b). This prompted PO Caputo to obtain § 87(2)(b)'s name, conduct a warrant check and place him under arrest for unlicensed operation of a motor vehicle when it was verified that his license was suspended. § 87(2)(g)

§ 87(2)(b) stated that he repeatedly asked for PO Caputo's name during the frisk and search, which PO Caputo allegedly refused to provide. According to PO Caputo, § 87(2)(b) never requested his name and he never refused to provide this information during the incident. PO Fusco corroborated his testimony. § 87(2)(b) also alleged that he asked officers to 'identify themselves' throughout the incident and that these officers refused to do so. All officers interviewed by the CCRB stated that § 87(2)(b) did not request their names or shield numbers. § 87(2)(g)

Finally, § 87(2)(b) also alleged in his written complaint (encl. 3a – 3b) that multiple officers at the 75th Precinct refused to 'identify themselves' for the duration of the time in which he was being processed at the stationhouse, and yet he did not mention this in his interview with the CCRB (encl. 5a – 5d). § 87(2)(g)

§ 87(2)(b) also alleged that officers repeatedly told him to 'shut the fuck up' and also threatened him with arrest. § 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Allegation A. PO Jason Caputo questioned § 87(2)(b)

According to Barry Kamins' *New York Search and Seizure Law*, an officer may request information "when there is some objectively credible reason for that interference, although not necessarily indicative of criminality" (encl. 1a – 1h). In this case, PO Caputo approached § 87(2)(b) who was sitting in the driver's seat of § 87(2)(b) parked vehicle, and asked him what he was doing. "Pursuant to a request for information, a police officer may ask questions regarding the identity and destination of an individual and his or her reason for being in a particular location" (encl. 1a – 1h). § 87(2)(g)

Allegation B. PO Jason Caputo frisked § 87(2)(b)

Allegation C. PO Jason Caputo searched § 87(2)(b)

§ 87(2)(g)

According to Barry Kamins' *New York Search and Seizure Law*, such a frisk and search is justified by two exigent circumstances: "the safety of the arresting officer, who must be permitted to search and seize weapons...and the preservation of evidence within the reach of the suspect" (encl. 1a – 1h). § 87(2)(g)

Allegation E. PO Jason Caputo searched the car in which § 87(2)(b) was an occupant

Allegation F. PO Thomas Fusco searched the car in which § 87(2)(b) was an occupant

It is undisputed that PO Caputo and PO Fusco searched the vehicle in which § 87(2)(b) was an occupant at the time of the incident. Both stated that it was their intention to impound the vehicle and that the search conducted at the scene was a preliminary inventory search. According to Barry Kamins' *New York Search and Seizure Law*, an inventory search satisfies the exception to the warrant requirement and may be conducted when, for example "a car is driven by an unlicensed driver or a driver whose license is suspended." § 87(2)(g)

Additionally, "there is no requirement that a vehicle be removed to the police station or to the police pound before it can be inventoried" (encl. 1a – 1h). § 87(2)(g)

§ 87(2)(g)

According to *People v. Schwing*, as cited in Barry Kamins' *New York Search and Seizure Law*, "the police are not required to offer a motorist the opportunity to locate a third party who can take custody of the car" (encl. 1a – 1h). § 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation D. PO Jason Caputo refused to provide his name and shield number to § 87(2)(b) [REDACTED]

Allegation G. Officers refused to provide his name and shield number to § 87(2)(b) [REDACTED]

Allegation H. Officers spoke obscenely to § 87(2)(b) [REDACTED]

Allegation I. Officers threatened to arrest § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: